

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                                         |                                            |                                                                                                                                                                                                                       |
|--------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Miriam Lynch                    | Team:<br>Squad #09                                                                                                      | CCRB Case #:<br>201709476                  | <input type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 11/12/2017 1:52 PM   | Location of Incident:<br>South East corner of Surf Avenue and Stillwell Avenue and the Transit District 34 stationhouse | 18 Mo. SOL<br>5/12/2019                    | Precinct:<br>60                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Mon, 11/13/2017 8:37 AM | CV Reported At:<br>CCRB                                                                                                 | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Mon, 11/13/2017 8:37 AM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POF Deana Dupree   | 06345  | 958533 | TB DT34 |
| 2. SGT Norely Castano | 01554  | 936316 | TB DT34 |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. POF Melissa Hufford | 01620     | 935943 | 061 PCT  |
| 2. LSA Kevin Murtha    | 00000     | 914386 | 061 PCT  |
| 3. SGT Jack Conway     | 03457     | 923699 | TB DT34  |

| Officer(s)             | Allegation                                                                         | Investigator Recommendation |
|------------------------|------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Norely Castano | Abuse: Sergeant Norely Castano did not obtain medical treatment for § 87(2)(b)     | A . Unsubstantiated         |
| B . POF Deana Dupree   | Abuse: Police Officer Deana Dupree did not obtain medical treatment for § 87(2)(b) | B . Unsubstantiated         |

### Case Summary

On November 13, 2017, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On November 12, 2017, at approximately 1:52 p.m., at the front of the Stillwell Avenue subway station in Brooklyn, § 87(2)(b) was taken into custody by PO Melissa Hufford and Lieutenant John Murtha, both of the 61<sup>st</sup> Precinct, after engaging in a physical altercation with another female individual, § 87(2)(b). PO Hufford and Lt. Murtha then brought § 87(2)(b) to the Transit District 34 Stationhouse, where she was logged in at the desk and brought to the holding cells by Sgt. Norely Castano and PO Deana Dupree, both of Transit District 34. Sgt. Castano and PO Dupree both allegedly refused to provide medical attention to § 87(2)(b) upon her request (**Allegations A and B: Abuse of Authority, unsubstantiated**).

Video from the Transit District 34 Stationhouse was requested, but the NYPD returned this request with negative results.

**Allegation A: Sergeant Norely Castano did not obtain medical attention for § 87(2)(b)**

**Allegation B: Police Officer Deana Dupree did not obtain medical attention for § 87(2)(b)**

It is undisputed that as PO Hufford and Lt. Murtha were walking § 87(2)(b) into the Transit District 34 stationhouse, while she was in front of the desk, § 87(2)(b) was physically uncooperative, dropping her weight to the floor. When she did so, Lt. Murtha lifted her from the floor. It is undisputed that § 87(2)(b) at the time that she was brought inside of the stationhouse, had scratches on her face, and a bump on her wrist. § 87(2)(g)

§ 87(2)(b) stated that as she was being taken into the stationhouse, she asked the desk sergeant for medical attention. She described the desk officer as a white male in his 40s. She stated that the desk officer said that she would not be provided with medical attention. She stated that she then requested medical attention from a black female officer in the holding cell three times, and that this officer told her that she could not have medical attention (Board Review 1).

§ 87(2)(b) ultimately went to § 87(2)(b) at § 87(2)(b) (Privileged Documents).

The desk sergeant recorded in the command log § 87(2)(g) was Sgt. Castano, a § 87(2)(b) Hispanic female officer (Board Review 2). Also noted in the command log was that § 87(2)(b) was present in the Transit District 34 Stationhouse between 1:50 p.m. and 5:25 p.m., and Sgt. Castano was at the front desk until 2:50 p.m. Sgt. Castano did not initially recall § 87(2)(b) but when provided with additional details about the incident, such as the presence of 61<sup>st</sup> Precinct officers, she remembered that § 87(2)(b) was verbally uncooperative with the arrest process, refusing to give her name. She did not recall that § 87(2)(b) was physically injured, and she did not remember her ever requesting medical attention. She stamped § 87(2)(b) into the command log as “apparently normal,” which she explained referred to § 87(2)(b)'s alleged mental state. She stated that neither she nor any other officer denied § 87(2)(b) medical attention (Board Review 3).

PO Dupree, a black female officer who was assigned to stationhouse duty on the day of the incident, also stated that § 87(2)(b) refused to give her name and was generally uncooperative.

She did, however, remember that § 87(2)(b) had scratches on her face and a lump on her wrist once she moved § 87(2)(b) into the holding cells. She stated that at that point, she asked § 87(2)(b) if she wanted an ambulance. § 87(2)(b) was confused, and so PO Dupree asked her if she wanted to go to the hospital. § 87(2)(b) stated that she did not want to go to the hospital, and that the bump on her wrist was a pre-existing condition. PO Dupree stated that PO Hufford was present with her at the time (Board Review 4).

PO Hufford, one of the officers who brought § 87(2)(b) into the stationhouse, corroborated that § 87(2)(b) had a bump on her wrist and scratches on her face. She stated, however, that she did not accompany her into the cells because § 87(2)(b) seemed extremely upset and was uncooperative, throwing herself on the ground. PO Hufford testified that when § 87(2)(b) was lodged into the cells, an officer, she did not remember who, came out of the cells and told her that § 87(2)(b) had refused medical attention, and stated that she would go to the hospital on her own time (Board Review 5).

Sgt. Conway, a white male sergeant who, per the command log, began to staff the front desk at the stationhouse approximately one hour after § 87(2)(b) was entered into the stationhouse. He would not have been present when first she was lodged (Board Review 2). Both Sgt. Conway and Lt. John Loprest, who could have potentially matched the description of the subject officer, and were present in the stationhouse, were interviewed (Board Reviews 12 and 14). They had no independent recollection of the incident, and documentation did not support their being at the front desk (Board Review 2).

The Medical Treatment of Prisoner form prepared by PO Hufford for § 87(2)(b) indicated that she refused to sign a form that indicated that she refused medical attention. No sergeant signed this form (Board Review 6).

§ 87(2)(b) sought medical attention after this incident at § 87(2)(b). § 87(2)(a) PHL § 18(6)  
§ 87(2)(b) s codefendant, stated that she did not have contact with § 87(2)(b) in the stationhouse, and that she did not ever hear her request medical attention (Board Review 11). None of the other officers present, including Lt. Murtha, ever heard § 87(2)(b) request medical attention (Board Reviews 12 and 13).

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]. It is therefore recommended that **Allegations A** and **B** be closed as **unsubstantiated**.

**Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 7).
- Sgt. Castano has been a member of service for 13 years and has been a subject in two complaints and two allegations, none of which were substantiated. § 87(2)(g) [REDACTED]  
[REDACTED] (Board Review 8).
- PO Dupree has been a member of service for two years and has been a subject in one complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]  
[REDACTED] (Board Review 8).

**Mediation, Civil and Criminal Histories**

- This case was not suitable for mediation due to § 87(2)(b) [REDACTED]'s stated intention to file a lawsuit.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]  
[REDACTED]  
[REDACTED]
- On March 19, 2018, a request for a notice of claim was submitted to the New York City Office of the Comptroller. The results will be added to the case file upon receipt (Board Review 10).

---

Squad #9

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date

